

Certificate or Acquittance from the said Sir Edmund Wright Sir James Cambell Sir George Whitmore Sir Nicholas Rainton Sir Christopher Cletherowe Robert Bateman or any of them acknowledging the Receipt of such sums the said parties severally shall be thereby discharged of for or concerning the said sums and if any other person or persons of what degree ranke or quality soever within the Kingdome of England or Dominion of Wales shall likewise before the time limited by this Act pay unto Sir Arthur Ingram Sir Robert Pye Knights William Wheeler and William Bell Esquires Members of the House of Commons or any of them and to the uses in this Act such sum or sums of money as by this Act he or shee is appointed to pay upon a Certificate or Acquittance from the said Sir Arthur Ingram Sir Robert Pye William Wheeler and William Bell or any of them acknowledging the receipt of such sums the said parties severally shall thereby be discharged of for or concerning the said sums and all such payments shall be taken as an acceptable service to this Kingdome.

Upon Certificate thereof discharged.

Persons residing in other Parts of the Kingdom, paying to certain Members of the House of Commons, on Certificate,

discharged.

AND it is further enacted and declared by the authority aforesaid that if any person or persons shall lend the sum of One hundred pound or any greater sum to or for the uses and purposes in this present Act menconed and declared such person shall do very good and acceptable service to the Common Wealth.

X.
Persons lending £100 on Credit of Act before 20th July next,

AND be it further enacted That any person or persons which shall soe lend and advance such sum or sums of money as aforesaid for this present occasion and shall before the twentieth day of July now next ensuing pay and deliver the same to such person or persons as are authorised by this present Act to receive the moneys charged hereby upon the respective Inhabitants of the City of London shall be secured by this Act for the repayment of the said moneys at such time and place as by the Lenders of the said money shall be required and agree upon And alsoe of the interest and damages sustained by the forbearance thereof after the rate of eight pound per centum for a yeare and untill such time as they shall respectively have received againe the said sums so lent and advanced.

XI.
Repayment secured, together with Interest at £8 per Cent. per Annum.

AND be it further enacted that the said Sir Edmund Wright Sir James Cambell Sir George Whitmore Sir Nicholas Rainton Sir Christopher Cletherow and Robert Bateman shall and may satisfie pay and deliver unto such person or persons respectively out of the said moneys soe to be received such respective sum and sums of money as shall be soe lent by him or them for the purposes aforesaid together with such other and further sum and sums of money as the interest of and for the said sum and sums respectively shall amount unto after the rate of eight pound per centum for a yeare from the day and time that the same was soe advanced as aforesaid untill they shall respectively have received the said sum or sums so advanced.

XII.
The said Receivers for London to repay such Loans, with Interest at the Rate aforesaid.

AND It is hereby further enacted that the Acquittance or Acquittances from the persons before appointed for the receipt of these moneys to the uses and purposes in this present Act expressed or of any three of them shall be a sufficient discharge to the Treasurers in this Act named for soe much money together with interest for the same as shall be comprehended in such Acquittance or Acquittances for the issuing out and payment of the said sum and sums of money respectively.

XIII.
What Acquittances to Treasurers a good Discharge.

PROVIDED alsoe And be it further enacted by the authority aforesaid that if any person or persons whatsoever hath or have beene rated taxed or assessed in the laft Booke of Subsidies for the foure Subsidies lately granted in this present Parliament at or above the rate of five pounds Lands or at or above the sum of seaven pound ten shillings in goods and yet by this present Act a lesser sum is laid set or charged upon him her or them for or in respect of his her or their Rank degree or quality that in every such case such person or persons as aforesaid shall pay the full and intire sums hereafter menconed that is to say he or shee that was rated at five pound Land shall pay five pounds he or shee that was rated at ten pound Land shall pay ten pound hee or shee that was rated at twenty pound Land shall pay twenty pound and so from five pound upwards proportionably and he or she that was rated at seaven pound ten shillings in goods shall pay five pound he or shee that was rated at fifteen pound in Goods shall pay ten pounds and so upwards from seaven pound ten shillings in Goods proportionably after the rate of two thirds of what he or she is set in goods reference being had to the first rate that was made upon the said Bill of Subsidies and shall be acquitted and discharged of and from the payment of every other sum and sums of money imposed upon him her or them for or in respect of his her or their respective rank degree or quality by this present Act Any matter or whatsoever thing herein made to the contrary notwithstanding

XIV.
Proviso respecting Persons rated in the last Book of Subsidies for the Four Subsidies lately granted, and rated by this Act at a lesser Sum in respect of his Rank or Degree.

PROVIDED alwaies That if any Archbishop or Bishop be by this present Act charged to pay a lesser sum then shall amount to a double tenth as they respectively stand rated in his Majesties Books of Firft Fruits and Tenths for their severall Archbishopricks and Bishopricks then every such Archbishop and Bishop shall pay by vertue of this Act one [full ''] double tenth as they stand rated as aforesaid.

XV.
Proviso as to Archbishops, &c. rated at a less Sum than shall amount to a double Tenth, as rated in the King's Books.

PROVIDED alwaies That this present Act or any clause matter or thing whatsoever therein contained shall not in any wise extend or be construed to extend to charge the Resiants or Inhabitants of the Shire or County of Northumberland of the Towne Borough or County of Newcastle upon Tyne of the Towne or Borough of Barwick upon Tweed or of the County Palatine of Durham or of any parts or places within them or any of them to bee taxed set asked leaved or paid but that all and every the Resiants and Inhabitants of and within them and every of them (saving such as are hereafter particularly mentioned) respectively be and shall be of and from the payments and taxes by this present Act imposed and of every part thereof cleerly acquitted and discharged Any matter or thing whatsoever in this present Act had or made to the contrary notwithstanding

XVI.
Proviso for Northumberland, Newcastle-upon-Tyne, Berwick-upon-Tweed, and County Palatine of Durham.

XVII.
Proviso as to
Inhabitants of last-
mentioned Counties,
and Places having
Lands, &c. of £20
yearly Value in
other Counties
or Places.

PROVIDED alwaies neverthelesse And be it further enacted by the authority aforesaid that all and every Resiant and Inhabitant of and within the said respective Counties Townes and Boroughs and Places last before mentioned which now hath any Mannors Lands Tenements or Hereditaments of the full and cleere yearly value of twenty pounds and upwards within any the other County or Counties place or places within the Kingdome of England or Dominion of Wales shall be rated and taxed according to his or their respective rank degree and quality as if he or shee were not Resiant or Inhabitant of or within the said respective Counties Boroughs or places hereby formerly excepted Any thing herein to the contrary thereof in any wise notwithstanding.

XVIII.
Proviso for
Inhabitants of
County and City
of York, Hull, and
Carlisle, who have
had Soldiers
billeted on them.

PROVIDED likewise That this Act shall not extend to charge any person or persons inhabiting in the County of Yorke the City and County of the City of Yorke the Town of Hull and County of the same and the City of Carlisle upon whom Souldiers are or have beene lately billeted and to whom money for the said Billet is still owing and who are not by this Act charged with the payment of above one shilling but that every such person shall be hereby quitted and discharged from the said Payment

XIX.
Proviso against
Double Charges.

PROVIDED that no person of what degree rank or quality soever shall be doubly charged by this Act (except Papists Recusants who are to pay double as by this Act is appointed) but that every such person shall pay the greatest proportion he or shee is charged with by this Act And every such person as by this Act is appointed to pay any sum or sums of money according to the rate and with reference to the said last Bill of four Subsidies shall pay the said sum or sums of money according to the highest rate was set upon him or her by vertue of the said Act in any one place and shall be discharged from any other rates by such Certificate as by the said Act is appointed

Discharge by
Certificate.

XX.
Rates on Peers
to be paid to a
Collector appointed
by the Peers :
his Duty.

[PROVIDED alwaies And be it hereby declared and enacted That the severall sums rated and taxed upon the Lords shall be received by a Collector to be nominated by the Peers which Collector so appointed by the Peeres shall dispose of the said sums to such persons respectively and such uses and purposes as by this Act is appointed.¹]

CHAPTER X.

Rot. Parl. 16 Car.
p. 2. nu. 6.

Magna Charta,
9 H. III. c. 29.

5 E. III. c. 9.

25 E. III. st. 5. c. 4.

28 E. III. c. 3.

42 E. III. c. 3.

36 E. III. c. 15.

3 H. VII. c. 1. § 1.

21 H. VIII. c. 20.

All Matters
examinable in the
Star Chamber may
be examinable and
redressed by the
Common Law.

AN ACT for [the Regulating²] the Privie Councell and for taking away the Court commonly called the Star Chamber.

WHEREAS by the Great Charter many times confirmed in Parliament It is Enacted That no Freeman shall be taken or imprisoned or disseised of his Freehold or Liberties or Free Customes or be Outlawed or exiled or otherwise destroyed and that the King will not passe upon him or condemn him but by lawfull Judgement of his Peers or by the Law of the Land And by another Statute made in the fifth yeare of the Reigne of King Edward the Third It is Enacted That no Man shall be attached by any accusation nor fore judged of Life or [Lim³] nor his Lands Tenements Goods nor Chattels seised into the Kings hands against the forme of the Great Charter and the Law of the Land And by another Statute made in the five and twentieth yeare of the Reigne of the same King Edward the Third It is accorded assented and established That none shall be taken by petition or suggestion made to the King or to his Councell unlesse it be by Indictment or Presentment of good and lawfull People of the same Neighbourhood where such deeds be done in due manner or by Processe made by Writ Originall at the Common Law and that none be put out of his Franchise or Freehold unlesse he bee duly brought in to answer and forejudged of the same by the course of [the⁴] Law and if any thing be done against the same it shall be redressed and holden for none And by another Statute made in the eight and twentieth yeare of the Reigne of the same King Edward the Third It is amongst other things Enacted That no Man of what Estate or condition soever he be shall be put out of his Lands or Tenements nor taken nor imprisoned nor disinherited without being brought in to answer by due Processe of Law And by another Statute made in the two and fourtieth yeare of the Reigne of the said King Edward the Third It is enacted That no Man be put to answer without presentment before Justices or matter of Record or by due Processe and Writ Originall according to the old Law of the Land and if any thing be done to the contrary it shall be void in Law and holden for error And by another Statute made in the six and thirtieth yeare of the same King Edward the Third It is amongst other things Enacted That all Pleas which shall be pleaded in any Courts before any the Kings Justices or in his other places or before any of his other Ministers or in the Courts and places of any other Lords within the Realm shall be entered and inrolled in Latine And whereas by the Statute made in the third yeare of King Henry the seaventh power is given to the Chancellour the Lord Treasurer of England for the time being and the Keeper of the Kings Privie Seale or two of them calling unto them a Bishop and a Temporall Lord of the Kings most honourable Councell and the two chiefe Justices of the Kings Bench and Common Pleas for the time being or other two Justices in their absence to proceed as in that Act is expressed for the punishment of some particular offences therein mentioned And by the Statute made in the one and twentieth yeare of King Henry the eighth The President of the Councell is associated to joyne with the Lord Chancellour and other Judges in the said Statute of the third of Henry the seaventh mentioned But the said Judges have not kept themselves to the points limited by the said Statute but have undertaken to punish where no Law doth warrant and to make Decrees for things having no such authoritie and to inflict heavier punishments then by any Law is warranted And forasmuch as all matters examinable or determinable before the said Judges or in the Court commonly called the Star Chamber may have their proper remedy and redresse and their due punishment and correction by the Common Law of the Land and in the ordinary course of Justice elsewhere And forasmuch

¹ annexed to the Original Act in a separate Schedule.

² regulating of O.

³ Lymne O.

⁴ interlined on the Roll.

as the reasons and motives inducing the erection and continuance of that Court doe now cease and the Proceedings Censures and Decrees of that Court have by experience beene found to be an intollerable burthen to the Subjects and the meanes to introduce an Arbitrary Power and Government And forasmuch as the Councell Table hath of late times assumed unto it selfe a power to intermedle in Civill causes and matters onely of private interest betweene party and party and have adventured to determine of the Estates and Liberties of the Subject contrary to the Law of the Land and the Rights and Priviledges of the Subject by which great and manifold mischeifes and inconveniencies have arisen and happened and much uncertainty by meanes of such proceedings hath beene conceived concerning Mens Rights and Estates For settling whereof and preventing the like in time to come. Be it Ordained and Enacted by the Authority of this present Parliament That the said Court commonly called the Star Chamber and all Jurisdiction Power and Authority belonging unto or exercised in the same Court or by any the Judges Officers or Ministers thereof be from the first day of August in the yeare of our Lord God one thousand six hundred fourty and one cleerely and absolutely dissolved taken away and determined and that from the said first day of August neither the Lord Chancellour or Keeper of the Great Seale of England the Lord Treasurer of England the Keeper of the Kings Privie Seale or President of the Councell nor any Bishop Temporall Lord Privy Councillor or Judge or Justice whatsoever shall have any power or authoritie to heare examine or determine any matter or thing whatsoever in the said Court commonly called the Star Chamber or to make pronounce or deliver any Judgement Sentence Order or Decree or to doe any Judiciall or Ministeriall Act in the said Court And that all and every Act and Acts of Parliament and all and every Article Clause and Sentence in them and every of them by which any Jurisdiction power or authority is given limited or appointed unto the said Court commonly called the Star Chamber or unto all or any the Judges Officers or Ministers thereof or for any proceedings to be had or made in the said Court or for any matter or thing to be drawn into question examined or determined there shall for so much as concerneth the said Court of Star Chamber and the Power and Authoritie thereby given unto it be from the said first day of August repealed and absolutely revoked and made void.

Council Table has assumed a Power contrary to Law.

Court of Star Chamber and all its Powers dissolved.

[AND be it likewise Enacted That the like Jurisdiction now used and exercised in the Court before the President and Councell in the Marches of Wales and alsoe in the Court before the President and Councell established in the Northern parts And also in the Court commonly called the Court of the Dutchy of Lancaster held before the Chancellour and Councell of the Court And alsoe in the Court of Exchequer of the Countie Palatine of Chester held before the Chamberlaine and Councell of that Court The like Jurisdiction being exercised there shall from the said first day of August one thousand six hundred fourty and one be alsoe repealed and absolutely revoked and made void Any Law prescription custome or Usage Or the said Statute made in the third yeare of King Henry the seventh Or the Statute made the one and twentieth of Henry the eighth Or any Act or Acts of Parliament heretofore had or made to the contrary thereof in any wise notwithstanding And that from henceforth no Court Councell or place of Judicature shall be erected ordained constituted or appointed within this Realme of England or Dominion of Wales which shall have use or exercise the same or the like Jurisdiction as is or hath beene used practised or exercised in the said Court of Star Chamber.¹]

II.
Like Jurisdiction in several other Courts repealed and taken away.

No Court or Council to have the like Jurisdiction.

BE it likewise declared and Enacted by Authoritie of this present Parliament That neither his Majestie nor his Privie Councell have or ought to have any Jurisdiction power or authority by English Bill Petition Articles Libell or any other arbitrary way whatsoever to examine or drawe into question determine or dispose of the Lands Tenements Hereditaments Goods or Chattels of any the Subjects of this Kingdome But that the same ought to be tried and determined in the ordinary Courts of Justice and by the ordinary course of the Law.

III.
The King or his Privy Council shall have no Jurisdiction over any Man's Estate.

AND be it further provided and Enacted That if any Lord Chancellour or Keeper of the Great Seale of England Lord Treasurer Keeper of the Kings Privy Seale President of the Councell Bishop Temporall Lord Privy Councillour Judge or Justice whatsoever shall offend or doe any thing contrary to the purport true intent and meaning of this Law [Then he or they shall for such offence forfeit the sum of five hundred pounds of lawfull Money of England unto any party grieved his Executors or Administrators who shall really prosecute for the same and first obtain Judgement thereupon to be recorded in any Court of Record at Westminster by Action of Debt Bill Plaint or Information wherein no Essoine Protection Wager of Law Aid Prayer Priviledge Injunction or Order of Restraint shall be in any wise prayed granted or allowed nor any more then one Imparlance And if any person against whom any such Judgment or Recovery shall be had as aforesaid shall after such Judgement or Recovery offend againe in the same then he or they for such offence shall forfeit the sum of one thousand pounds of lawfull Money of England unto any party greived his Executors or Administrators who shall really prosecute for the same and first obtain Judgement thereupon to be recorded in any Court of Record at Westminster by action of Debt Bill Plaint or Information in which no Essoine Protection Wager of Law Aid Prayer Priviledge Injunction or Order of Restraint shall be in any wise prayed granted or allowed nor any more than one Imparlance And if any Person against whom any such second Judgement or Recovery shall be had as aforesaid shall after such Judgement or Recovery offend againe in the same kind¹] and shall be thereof duly convicted by Indictment Information or any other lawfull way or meanes that such Person soe convicted shall be from thenceforth disabled and become by vertue of this Act incapable Ipso facto to beare his and their said Office and Offices respectively and shall be likewise disable to make any Gift Grant Conveyance or other disposition of any his Lands Tenements Hereditaments Goods or Chattels or to take any benefit of any Gift Conveyance or Legacy to his owne use.

IV.
Great Officers and others offending;

First Offence,
Penalty £500.

Second Offence,
Penalty £1000.

Third Offence,
Disabled.

¹ annexed to the Original Act in a separate Schedule.

V.
Treble Damages to
the Party grieved.

AND every person so offending shall likewise forfeit and loose unto the Party grieved by any thing done contrary to the true intent and meaning of this Law his trebble damages which he shall sustain and be put unto by meanes or occasion of any such Act or thing done the same to be recovered in any of His Majesties Courts of Record at Westminster by Action of Debt Bill Plaint or Informaçon wherein no Essoine Protection Wager of Law Aid Prayer Priviledge Injunction or Order of Restraint shall be in any wise prayed granted or allowed nor any more then one Imparlance

VI.
Every Person
committed contrary
to this Act shall
have an Habeas
Corpus for the
ordinary Fees.

AND be it alsoe provided and Enacted That if any person shall hereafter be committed restrained of his Libertie or suffer imprisonment [by the Order or Decree of any such Court of Star Chamber or other Court aforesaid now or at any time hereafter having or pretending to have the same or like Jurisdiction power or authoritie to commit or imprison as aforesaid Or by the command or Warrant of the Kings Majestie his Heires or Successors in their owne Person or by the Command or Warrant of the Councell board or of any of the Lords or others of his Majesties Privy Councell'] That in every such case every Person so committed restrained of his libertie or suffering imprisonment upon demand or motion made by his Councell or other employed by him for that purpose unto the Judges of the Court of Kings Bench or Common Pleas in open Court shall without delay upon any pretence whatsoever for the ordinary Fees usually paid for the same have forthwith granted unto him a Writ of Habeas Corpus to be directed generally unto all and every Sheriffs Gaoler Minister Officer or other Person in whose custody the party committed or restrained shall be [and the Sheriffs Gaoler Minister Officer or other pson in whose custody the pty so committed or restrained shall be²] shall at the return of the said Writ & according to the command thereof upon due and convenient notice thereof given unto him [at the charge of the party who requireth or procureth such Writ and upon securitie by his owne bond given to pay the charge of carrying back the prisoner if he shall be remanded by the Court to which he shall be brought as in like cases hath beene used such charges of bringing up and carrying backe the prisoner to be alwaies ordered by the Court if any difference shall arise thereabout'] bring or cause to be brought the body of the said party so committed or restrained unto and before the Judges or Justices of the said Court from whence the same Writ shall issue in open Court and shall then likewise certifie the true cause of such his detainer or imprisonment and thereupon the Court within Three Court dayes after such return made and delivered in open Court shall proceed to examine and determine whether the cause of such commitment appearing upon the said return be just and legall or not and shall thereupon do what to justice shall appertaine either by delivering bailing or remanding the prisoner And if any thing shall be otherwise wilfully done or omitted to be done by any Judge Justice Officer or other person aforementioned contrary to the direction and true meaning hereof That then such person so offending shall forfeit to the party grieved his trebble damages to be recovered by such meanes and in such manner as is formerly in this Act limited and appointed for the like penaltie to be sued for and recovered

Cause of Detainer
certified by Sheriff,
&c. and thereupon
Court to proceed.

Default by Judge,
&c.

Damages.

VII.
To what Courts this
Act shall extend.

[PROVIDED alwaies and be it Enacted That this Act and the severall Clauses therein contained shall be taken and expounded to extend only to the Court of Star Chamber and to the said Courts holden before the President and Councell in the Marches of Wales and before the President and Councell in the Northern parts and alsoe to the Court commonly called the Court of the Dutchy of Lancaster holden before the Chauncellour and Councell of that Court And alsoe in the Court of Exchequer of the County Palatine of Chester held before the Chamberlaine and Councell of that Court And to all Courts of like Jurisdiction to be hereafter erected ordained constituted or appointed as aforesaid And to the Warrants and directions of the Councell board and to the commitments restraints & Imprisonments of any Person or Persons made commanded or awarded by the Kings Majesty his Heires or Successors in their owne person or by the Lords and others of the Privie Councell and every one of them

VIII.
Limitation of
Information, &c.

AND lastly Provided and be it Enacted That no person or persons shall be sued impleaded molested or troubled for any offence against this present Act unlesse the party supposed to have so offended shall be sued or impleaded for the same within two yeares at the most after such time wherein the said offence shall be committed.¹]

CHAPTER XI.

Rot. Parl. 16 Car.
p. 2. nu. 7.
1 Eliz. c. 1.

AN ACT for repeal of a branch of a Statute primo Elizabeth concerning Commissioners for causes Ecclesiasticall.

§ 18.

WHEREAS in the Parliament holden in the first yeare of the Reigne of the late Queene Elizabeth late Queene of England there was an Act made and established Intituled An Act restoring to the Crowne the ancient Jurisdiction over the State Ecclesiasticall and Spirituall and [aboshing³] all Forreign Power repugnant to the same In which Act amongst other things there is contained one Clause Branch Article or Sentence whereby it was Enacted to this effect Namely That the said late Queenes Highnes her Heires and Successors Kings or Queenes of this Realme should have full power and authoritie by vertue of that Act by Letters Patents under the Great Seale of England to assigne name and authorize when and as often as her Highnes her Heires or Successors should thinke meet and convenient and for such and so long time as should please her Highnes her Heires or Successors such Person or Persons being naturall born Subjects to her Highnes her Heires or Successors as her Majestie her Heires or Successors should thinke meet to exercise use occupie and execute under her Highnes her Heires and Successors all manner of Jurisdictions Priviledges & [Preheminence⁴] in any wise touching or concerning any Spirituall or Ecclesiasticall Jurisdiction within these her Realmes of England and Ireland or any other her Highnesse Dominions

¹ annexed to the Original Act in a separate Schedule.

² interlined on the Roll.

³ abolishing O.

⁴ Preheminence O.